



File No.: EXP202401934

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection (hereinafter AEPD) on 02/01/2024. The complaint is directed against GAFAS EN RED DE ÓPTICAS S.L. (hereinafter GAFAS EN RED), with NIF B73833758, but in the allegations dated 11/07/2024 to this sanctioning procedure, its legal representative informs that the company name as of 01/01/2024 is SUPERVISTA OPTICS SLU.

The reasons on which the complaint is based are as follows:

The receipt of commercial electronic communications at the email address

***USUARIO.1@gmail.com, the last of which was dated 12/12/2023, after the confirmation on 24/05/23 by GAFAS EN RED of the receipt of the claimant's opposition/suppression to receive commercial communications.

Along with the notification, a copy of the message from GAFAS EN RED dated 24/05/23, which confirms the requested cancellation, is provided, as well as a copy of the message dated 12/12/2023, in which GAFAS EN RED offers a new eye examination to the claimant.

The email sent by GAFAS EN RED to the claimant states the following:

"Dear customer, it has been approximately 2 years since you purchased glasses from us.

Did you know that, despite the time that has passed, as a customer of gafas.es you have the right to a free eye examination?

Since visual acuity can change significantly over the course of two years, we want to remind you today that you are invited to have a free eye examination with us.

Perhaps you have already noticed it yourself? For example, have you experienced significant glare from traffic lights while driving at night?

If so, this would be a clear sign that your visual acuity has changed!

Additionally, with the glasses you purchased from us, you always have the right to a free and non-binding glasses adjustment and eye examination. The glasses adjustment includes: - Cleaning, screwing, and adjusting the frame for greater comfort. -

Free professional eye examination to assess the current state of your lenses and whether your prescription has changed. BOOK A FREE GLASSES ADJUSTMENT AND EYE EXAMINATION"

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded on 02/02/2024 to GAFAS EN RED, for them to analyze it and inform the AEPD within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on 13/02/2023, as evidenced by the acknowledgment of receipt in the file. No response has been received to this forwarding letter.

THIRD: On 02/04/2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On 28/05/2024, the Director of the AEPD agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 21 of the LSSI, classified in Article 38.4.d) of the LSSI.

FIFTH: The aforementioned initiation agreement was notified electronically on 29/05/2024 in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), with acknowledgment of receipt occurring on 07/06/2024.

SIXTH: On 04/07/2024, SUPERVISTA AG, as the 100% owner of SUPERVISTA OPTICS SLU

(formerly called GAFAS EN RED), submitted a request for an extension until July 12, 2024, for this file. SUPERVISTA AG is a corporation based in Germany, Königs Wusterhausen SIEMENSSTRABE 2, 15711 CP.

In the request for an extension of a new deadline for allegations, in addition to being late, it is not documented that the signatory of SUPERVISTA AG holds the representation of SUPERVISTA S.L.U. SEVENTH: In its allegations submitted on 11/07/2024, SUPERVISTA OPTICS SLU (SPAIN) first indicates that as of 01/01/2024 GAFAS EN RED has undergone a change of corporate name, now being called SUPERVISTA OPTICS SLU; and then summarizes that the claimant was a customer of GAFAS EN RED and after opposing to receive messages on 24/07/2023, was included in a marketing blacklist, so they did not receive any more electronic commercial communications from that date. However, their data, as a customer and user, continued to be stored in accordance with legal requirements.

It also alleges that on 12/12/2023, GAFAS EN RED sent the claimant a message for a free examination of the purchased glasses, as the warranty period had not yet expired and that it was a service email and not

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commercial, because Article 21.2 of the LSSI authorizes the sending of commercial communications when there is a prior contractual relationship and the communication refers to the purchased product. It concludes in the allegations that there is no infringement, no intent, nor recidivism in this case and that the proposed sanction of a fine of twenty thousand euros (€20,000) is completely disproportionate, even if intent and recidivism are presumed.

It also cites the ruling of the CJEU (Court of Justice of the European Union C-300/21 of 04.05.2023), according to which it must be examined whether damage has occurred to the affected person, which occurs if the data of the interested party has been disclosed to unauthorized third parties. This ruling resolves a preliminary question regarding the interpretation of Article 84 of the GDPR, concerning the possibility of automatically obtaining compensation for damages before the courts, based on a violation of the GDPR.

EIGHTH: In the Resolution Proposal of 07/08/2024, the allegations of the Initiation Agreement presented by GAFAS EN RED on 11/07/2024 are evaluated as follows:

GAFAS EN RED claims that the complaining party was a customer and that after exercising their right to object to advertising communications on 24/05/2023, the complaining party was included in a marketing blacklist, and therefore did not receive electronic commercial communications from that date onwards. GAFAS EN RED considers that the message sent pertains to its customer, does not have a commercial nature, as it concerns a service offered to its customer, in accordance with Article 21.2 of the LSSI.

In this regard, it is necessary to reiterate the definition of commercial communication from ANNEX section f) of the LSSI as: “any form of communication aimed at the promotion, directly or indirectly, of the image or of the goods or services of a company, organization, or person engaged in commercial, industrial, artisanal, or professional activity.” In accordance with this definition, both the letter and the email sent by GAFAS EN RED have the character of commercial communication.

Regarding Article 21.2 paragraph 1 of the LSSI cited by GAFAS EN RED, the sending of advertising communications would only apply as long as the interested party has not exercised their right to object, as provided in paragraph 2 of Article 21.2 of the LSSI itself.

Since the complaining party has exercised their right to object to continue receiving advertising messages on 24/05/2023 and GAFAS EN RED acknowledged receipt of this request on that same date, the subsequent communications from GAFAS EN RED have taken place against the expressed will of the complaining party.

Article 21 of the LSSI thus expressly prohibits the sending of advertising or promotional communications by email that have not been previously requested or expressly authorized by the recipients and also those made against the right of opposition of the interested party, duly expressed.

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GAFAS EN RED also claims that there is no infringement, no intent, nor recurrence in this case, and that the proposed sanction of twenty thousand euros (€20,000) is completely disproportionate, even if intent and recurrence are presumed.

Regarding the alleged absence of infringement, Article 38.4(d) of the LSSI qualifies the sending of commercial communications by email or other equivalent electronic means as a minor infringement when the requirements established in Article 21 of the LSSI are not met, as is the case here. The sending of advertising communications knowingly against the expressed will of the interested party is a minor infringement according to the LSSI, given that GAFAS EN RED was aware of the opposition of the claimant, to whom it sent a confirmation email.

As for the allegation of lack of proportionality of the sanction, it should be noted that the proposed €20,000 sanction is at the medium level of the fine range of up to a maximum of €30,000, as stipulated for minor infringements by Article 39.1(c) of the LSSI.

Regarding the allegation of absence of recurrence, Law 40/2015 on the Legal Regime of the Public Sector (hereinafter LRJSP), in its Article 29.3(d) (proportionality of sanctions for the sanctioning power), regulates this aspect as follows:

“The grading of the sanction will particularly consider the following criteria:

(...)

d) Recurrence, for the commission within a year of more than one infringement of the same nature when this has been declared by a firm resolution in the administrative process.”

There is already a firm resolution from the sanctioning procedure of the AEPD itself (PS/00076/2024), for the commission within a year of an infringement of the same nature by GAFAS EN RED; the proposed sanction of PS/00076/2024 was initially €10,000 and the sanction finally paid was reduced to €6,000, but only as a result of the 20% reductions for acknowledgment of responsibility and the 20% for waiving the administrative route (a total reduction of 40% of the sanction as the sum of both concepts).

Therefore, it is appropriate to aggravate the proposed sanction, thus complying with the principle of proportionality, as the non-compliance has worsened, in accordance with Article 29.3(d) of the LRJSP. Regarding the allegation of lack of intent as an aggravating factor, it should be noted that GAFAS EN RED ignores the legitimately expressed desire of the claimant to whom it even sent a confirmation email of their right to oppose, thereby demonstrating a qualified will to contradict their wish not to receive advertising communications, by sending them an email and also postal mail, both with similar promotional content.

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In the grading of the sanction, the application of the aggravating factors of intent and recurrence is correct regarding the application of the principle of proportionality in the sanction, taking as a starting point the previously proposed sanction (PS/00076/2024), along with the two described and duly accredited aggravating factors.

GAFAS EN RED argues in its defense the judgment of the Court of Justice of the European Communities (CJEU/TJCE C-300/21 of 04.05.2023), which would require the existence of damage to the affected person as a prerequisite for the sanction and that this would only occur if the data of the interested party has been disclosed to unauthorized third parties.

This judgment resolves a preliminary ruling on the interpretation of Article 84 of the GDPR, namely, the possibility of automatically obtaining compensation for damages before the courts, based on an infringement of the GDPR. This litigated issue and its resolution in the indicated judgment have nothing to do with the present procedure, which is based on an administrative infringement of the LSSI, and not on the necessary requirements for a possible compensation for damages before civil courts for

non-compliance with the GDPR, so the resulting jurisprudence and doctrine would not apply to the case at hand.

NINTH: In the proposed resolution, the initial sanction of the Initiation Agreement is confirmed and it is proposed that SUPERVISTA OPTICS SLU (until 31/12/2023 under the name GAFAS EN RED DE ÓPTICAS, S.L.) be sanctioned with a fine of twenty thousand euros (€20,000) for the infringement of Article 21 of the LSSI, classified in Article 38.4(d) of the LSSI.

On 07/08/2024, the AEPD notified SUPERVISTA OPTICS SLU, with acknowledgment of receipt on 08/08/2024, of the proposed resolution, granting them a period of 10 days to make further allegations, without any allegations being submitted to date.

From the actions taken in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: The claimant has been a customer of GAFAS EN RED (from 01/01/2024 it is called SUPERVISTA OPTICS SLU).

SECOND: On 24/05/23, the claimant exercised their right to oppose the receipt of advertising communications before GAFAS EN RED. GAFAS EN RED communicated on the same date the cancellation of the claimant's data.

THIRD: On 12/12/2023, the claimant received at their email address from GAFAS EN RED

***USUARIO@gmail.com, again a commercial communication for vision review and the fitting of new glasses.

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Competence

In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on information society services and electronic commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures." Finally, the Fourth Additional Provision "Procedure in relation to the powers attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing rules shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the powers attributed to it by other laws."

II

Preliminary Issues

Prohibition of unsolicited or expressly authorized commercial communications, by email or equivalent electronic means

In general, the LSSI prohibits unsolicited or expressly authorized commercial communications, based on a concept of commercial communication that is classified as a service of the information society and defined in its Annex as follows:

"f) Commercial communication": any form of communication aimed at the promotion, directly or indirectly, of the image or of the goods or services of a company, organization, or person engaged in a commercial, industrial, artisanal, or professional activity.

For the purposes of this Law, the data that allow direct access to the activity of a person, company, or organization, such as the domain name or email address, shall not be considered commercial

communication, nor shall communications related to the goods, services, or image offered when they are prepared by a third party and without economic consideration.”

The concept of commercial communication, according to the definition included in Annex f), first paragraph of the LSSI, encompasses all forms of communications intended to promote, directly or indirectly, goods, services, or the image of a company, organization, or person with a commercial, industrial, artisanal, or professional activity.

On the other hand, the LSSI in its Annex a) defines “Service of the Information Society” as “any service normally provided for a fee, at a distance, by electronic means and at the individual request of the recipient.

The concept of service of the information society also includes services not remunerated by their recipients, to the extent that they constitute an economic activity for the service provider.”

The definition of service provider is contained in section c) of the Annex of the aforementioned regulation, which considers as such the “natural or legal person that provides a service of the information society.”

The aforementioned section adds that the sending of commercial communications is a service of the information society, provided that it represents an economic activity. According to section d) of the cited Annex, the recipient is the “natural or legal person that uses, whether or not for professional reasons, a service of the information society.”

From the above, it follows that when the commercial communication does not meet the requirements of the concept of Services of the Information Society, it loses its character as a commercial communication.

In this regard, the second paragraph of Annex f) of the LSSI indicates two cases that shall not be considered, for the purposes of this Law, as commercial communication:

- a) the data that allow direct access to the activity of a person, company, or organization, such as the domain name or email address, and,
- b) the communications related to the goods, services, or image offered when they are prepared by a third party and without economic consideration.

Article 21 of the LSSI regulates the conditions of advertising communications as follows (the relevant parts for the case are underlined):

Article 21

“1. The sending of advertising or promotional communications by email or other equivalent electronic means that have not been previously requested or expressly authorized by the recipients thereof is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send communications.”

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commercial communications related to products or services of their own company that are similar to those initially contracted with the client.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When the communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such an address is prohibited.

Article 21.1 of the LSSI expressly prohibits the sending of advertising or promotional communications by email that have not been previously requested or expressly authorized by the recipients, with the sole exception provided in Article 21.2 of the LSSI, which authorizes the sending of commercial communications when there is a prior contractual relationship, and exclusively for commercial

communications related to products or services of their own company that are similar to those initially contracted by the client.

All types of unsolicited communication, made electronically and aimed at offering, marketing, or trying to arouse interest regarding a product, service, or company, are referred to as "spam."

The sending of commercial messages, without prior consent or having exercised the right of opposition, is prohibited by Spanish legislation, especially when done in a massive and indiscriminate manner. The low cost of sending emails via the Internet or through mobile telephony (SMS and MMS), its possible anonymity, and the speed and volume of transmissions have favored the abusive and indiscriminate practice of this.

III

Unfulfilled Obligation

Article 21 of the LSSI

The known facts could constitute an infringement, attributable to the claimed party, for violation of Article 21 of the LSSI.

According to the available evidence, GAFAS EN RED sent a commercial email on 12/12/2023 to the email address of the claiming party ***USUARIO.1@gmail.com, despite having confirmed by message on 24/05/23 the removal of their data from the database for commercial communications, in response to the request of the claiming party.

GAFAS EN RED holds the status of service provider, as it is a legal entity that provides an information society service (Annex section c) of the LSSI) that carries out commercial communication for the direct or indirect promotion of the image or its goods or services (definition Annex f) of the LSSI). The service offered is a free vision check, a non-remunerated service, but which GAFAS EN RED carries out within the framework of its commercial activity, in its capacity as a provider of optical services (sale of glasses, etc.) for the promotion of its goods and services.

GAFAS EN RED would have sent an email with advertising communication, knowing the recipient's opposition since May 2023, despite GAFAS EN RED communicating at that time the deletion of personal data to the claiming party.

With the sending of the commercial communication without the consent of the claiming party, who had previously exercised their right of opposition before the sending, GAFAS EN RED would have violated Article 21 of the LSSI, which requires the recipient's consent for these cases and prohibits the sending of commercial communications when the right of opposition has been exercised.

IV

Classification of the Infringement

Thus, the sending of unsolicited commercial communications, outside the exceptional case of Article 21.2 of the LSSI, may constitute a minor or serious infringement of the LSSI.

Title VII of the LSSI under the heading "Infringements and Sanctions" contains the sanctioning regime applicable in the event that any of the infringements contained in the infringement table included therein occurs. Specifically, Article 37 specifies that "providers of information society services are subject to the sanctioning regime established in this Title when this Law is applicable to them."

In accordance with the provisions of Article 38, in its sections 3 and 4 of the LSSI, the following are considered serious and minor infringements (the applicable part to the case is underlined):

"4. Minor infringements are:

d) The sending of commercial communications by email or other equivalent electronic communication means when such communications do not meet the requirements established in Article 21 and do not constitute a serious infringement."

In light of the proven facts, the non-compliance with Article 21 of the LSSI constitutes, in the terms indicated by the aforementioned Article 38.4.d), a minor infringement in this case, as it involves an individual sending of an advertising or promotional communication by email, without the consent of the interested party.

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Proposal for Sanction

This infringement of Article 21, being classified as minor, may be sanctioned with a fine of up to €30,000, in accordance with Article 39.1 c) of the LSSI, which stipulates the following (the applicable part to the case is underlined):

“1. For the commission of the infringements set forth in the previous article, the following sanctions shall be imposed:

a) For the commission of very serious infringements, a fine of €150,001 to €600,000. The repetition within three years of two or more very serious infringements, sanctioned with firm effect, may lead, depending on the circumstances, to the sanction of prohibition of action in Spain, for a maximum period of two years.

b) For the commission of serious infringements, a fine of €30,001 to €150,000.

c) For the commission of minor infringements, a fine of up to €30,000.”

Furthermore, in accordance with the evidence available, it is considered appropriate to adjust the sanction to be imposed according to the following criteria established in Article 40 of the LSSI:

“The amount of the fines imposed shall be graded according to the following criteria (the applied criteria are underlined):

a) The existence of intent.

b) The period of time during which the infringement has been committed.

c) The recurrence of the commission of infringements of the same nature, when declared by a firm resolution.

d) The nature and amount of the damages caused.

e) The benefits obtained from the infringement.

f) The volume of business affected by the committed infringement.

g) Adherence to a code of conduct or a self-regulatory advertising system applicable to the committed infringement, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent authority or authorities.”

- The existence of intent (section a), as the claimant had requested that no further commercial communications be sent to them, and the entity being claimed against had acknowledged receipt of this request, confirming that it had been attended to, and despite this, subsequently sent advertising messages again.

- Given that there is a firm resolution from the sanctioning procedure of the AEPD (PS/00076/2024), for the commission by GAFAS EN RED of an infringement of the same nature in the same year, the aggravating factor of recurrence also applies (section c).

For all the reasons stated above, it is deemed appropriate to maintain the proposed sanction from the initiation agreement, of an administrative fine of twenty thousand euros (€20,000).

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on SUPERVISTA OPTICS SLU (until 31/12/2023 under the name GAFAS EN RED DE ÓPTICAS, S.L.), with NIF B73833758, a fine of twenty thousand euros (€20,000) for an infringement of Article 21 of the LSSI, classified under Article 38.4.d) of the LSSI.

SECOND: TO NOTIFY this resolution to SUPERVISTA OPTICS SLU.

THIRD: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right. The sanctioned party is warned that they must

comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

Mar España Martí

Director of the Spanish Agency for Data Protection

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